

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SOUTHERN INTERNATIONAL CO., LTD., *Complainant*

v.

DAYNAMEZ GROUP OF COMPANIES LLC, *Respondent*.

DOCKET NO. 25-24

Served April 22, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S MOTION FOR RELIEF RELATED TO LATE FILED STATUS REPORT

This matter came on for consideration of Complainant’s Renewed Motion for Leave to Accept Late-Filed Corrected Joint Status Report, to Deem the April 14, 2026, CADRS Preliminary Conference Satisfied, and for Related Relief filed April 22, 2026, accompanied by a declaration and fully executed joint status report and proposed scheduling order attached as exhibits. For the reasons set forth below, the motion is **GRANTED**. The joint status report and proposed scheduling order attached to the motion is accepted as timely filed and the CADRS conference is deemed to have been timely conducted. A scheduling order will be separately issued.

The present motion was filed in response to my April 16, 2026, Order denying without prejudice Complainant’s motion seeking extension of the deadline to conduct a scheduled CADRS conference by one day, and rejecting the late filed joint status report and proposed scheduling order that Complainant submitted even though it had not been executed by both parties. (Dkt. 25, 26.)

The April 16 Order denied Complaint’s motion for extension because it: 1) was not filed at least seven days in advance of the deadline in accordance with 46 C.F.R. § 502.102(a), and did not assert good cause for failure to meet this requirement; and 2) did not comply with 46 C.F.R. § 502.71(a) in that it failed to state whether there is “any opposition to the relief requested and if there is opposition, to narrow the areas of disagreement.”

The declaration attached to the present motion is executed by Complainant’s director, Nguyen Tien Phuong, in Ho Chi Minh City, Vietnam, who asserts, *inter alia*, that: 1) he submitted the draft status report to Respondent’s counsel on April 3, 2026, in advance of the April 14, 2026, filing deadline; 2) on April 10, 2026, Respondent’s counsel indicated that he was reviewing the draft and would get back to him in advance of the filing deadline; 3) on April 13, 2026, Respondent’s counsel provided revisions; 4) based on these exchanges the declarant understood that the parties had substantially conferred regarding the status of the contents of the joint status report before the deadline; and 4) prior to filing the joint status report one day late on

April 14, 2026, he did not obtain express authorization to represent that the joint status report had been fully executed. The declaration also states that the CADRS conference was held on April 14, 2026, one day after the deadline established in the initial order, and the same date as the unexecuted joint status report was filed.

Based on this record, I find good cause to grant the pending motion, to accept the parties' late filed joint status report attached to the motion as timely, and to accept as timely the CADRS conference that was conducted one day late. The supporting declaration shows that Complainant acted in good faith in attempting to comply with the applicable deadlines. The record shows that the parties have cured the deficiencies addressed in the April 16 Order, and that the delay in complying with applicable deadlines was nominal with no prejudice to either party.

For these reasons, Complainant's Renewed Motion for Leave to Accept Late-Filed Corrected Joint Status Report, to Deem the April 14, 2026, CADRS Preliminary Conference Satisfied, and for Related Relief is **GRANTED**. The **joint status report and proposed scheduling order attached to the motion is accepted as timely filed** and the **CADRS conference is deemed to have been timely conducted**. A scheduling order will be separately issued.

MARY A.
HERVEY -S

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A. HERVEY -S
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Mary Apostolakos Hervey
Administrative Law Judge